

24NNCV04104 24NNCV04104

County: los-angeles

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Case Number: 24NNCV04104 Hearing Date: July 10, 2026 Dept: D

TENTATIVE RULING

Calendar: 6

Date: July 10, 2026

Case No: 24NNCV04104 Trial Date: May 10, 2027

Case Name: Ogihara v. Kim, et al.

MOTIONS TO COMPEL COMPLIANCE

[CCP § 2031.320]

Moving Party: Plaintiff, Ikuo Ogihara

Responding Party: Defendants, Andrew Kim and HBSM Care Inc.

RELIEF REQUESTED:

Compel compliance with HBSM's statement of compliance in response to Requests for Production Pursuant to CCP § 485.230, Set One.

Compel compliance with Andrew Kim's statement of compliance in response to Requests for Production Pursuant to CCP § 485.230, Set One.

CAUSES OF ACTION: from First Amended Complaint

1) Breach of Contract

2) Breach of Contract

3) Breach of Contract

4) Account Stated

5) Money Had and Received

6) Open Book Account

7) Declaratory Relief

SUMMARY OF FACTS:

Ikuo Ogihara ("Plaintiff") alleges that in June of 2013, Plaintiff entered into a Revolving Line of Credit Agreement (RLCA), accompanying Promissory Note (Note) and Personal Guaranty (Guaranty) pursuant to which Plaintiff agreed to loan Defendants \$500,000 in exchange for Defendants' repayment of the principal amount in five years with an interest rate of 3% per annum compounding on the original principal of the loan. Plaintiff alleges that defendant Andrew Kim ("Kim") executed the RLCA in his capacity as owner of Sports Med Care, Inc., which was later amended to name only HBSM Care, Inc ("HBSM"). Kim also executed the Note, and, as an additional term to the RLCA and to provide further assurance to Plaintiff, Kim also executed the Guaranty to the Note in his individual capacity as personal guarantor.

The FAC alleges that the Note was originally due and payable on July 14, 2018, with Defendants allowed to make only the interest payments during the first 3 years of the loan and then to pay the principal plus accrued interest in the remaining final two years. Defendants, however, failed to make timely interest payments and instead made sporadic interest payments over time. They also failed to make any payments toward the principal loan balance. The sporadic payments continued until 2021, and, despite promises of repayment, Defendants failed to make any additional payments to Plaintiff since May 23, 2021. The FAC alleges that as of the filing of the Complaint, the total outstanding amount owed by Defendants is approximately \$609,621.17.

ANALYSIS:

"If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance." (CCP, § 2031.320 subd. (a).)

Plaintiff moves to compel compliance with HBSM's response to Plaintiff's RFPs, Set One, that it would produce all non-privileged documents responsive to RFPs Nos 1, 2, 5, 6, 8, 9, 11, and 14-18. In the opposition, HBSM argues that this motion was filed nearly a year ago and HBSM has since served three sets of further responses and produced additional documents. HBSM asserts that it has produced all documents responsive to these requests. (Dell Decl., ¶¶ 2-4, Exs. A-B.)

Plaintiff moves to compel compliance with Kim's response to Plaintiff's RFPs, Set One, that it would produce all non-privileged documents responsive to RFPs Nos. 1, 9, 17, 18, 20, 21, 27, 41, and 51- 54. In the opposition, Kim asserts that since this motion was filed, he has served two sets of amended responses and has produced all documents responsive to these requests. (Dell Decl., ¶ 2-4, Exs. A-B.)

In the replies, Plaintiff asserts that the production remains deficient and that Defendants have still failed to produce certain bank records and documents. The Court notes that many of the discovery requests at issue in these motions have already been addressed in the numerous prior discovery motions filed in this action. (4/17/2026 Minute Order; 12/5/2025 Minute Order.) It is unclear to what extent the relief sought in the instant motions remains necessary in light of the subsequent discovery responses served and the Court's prior orders regarding these discovery requests. Because Defendants have since produced additional documents, the instant motion to compel compliance is moot. To the extent Plaintiff argues in the reply that Defendants' supplemental production is not sufficient, Plaintiff may file a motion to compel further responses as to the specific RFPs that Plaintiff contends are inadequate.

Request for Sanctions

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP, § 2031.320 subd. (b).)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

Even after a party provides discovery responses, a party can keep its motion on calendar and the court has authority to grant sanctions, even if it denies the motion to compel responses "as essentially unnecessary, in whole or in part." (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409.)

Here, although the Court has denied the motions as moot, it appears that filing the motions was necessary for Defendants to supplement their discovery responses. Accordingly, the Court finds that sanctions are warranted.

Plaintiff requests sanctions in the amount of \$1,700.00 per motion. The amount requested is high given that the motions are largely duplicative of the prior discovery motions filed in this matter. Moreover, the hearings on the motions are scheduled concurrently, require minimal preparation and can be attended remotely. The sanctions are adjusted accordingly. Sanctions are awarded as follows: 3 attorney hours at \$375.00 per hour for total sanctions of \$1,125.00.

RECOMMENDED RULING:

Plaintiff's Motion to Compel Compliance with HBSM's Responses to Requests for Production Pursuant to CCP section 485.230 [RES ID # 5423] is DENIED as MOOT.

The request for sanctions is GRANTED.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$1,125.00 (3 hours @ \$375.00/hour and \$300.00/hour) [5.08 hours requested] [Amount Requested \$1,700.00], which sum is to be awarded in favor of Plaintiff Ikuo Ogihara, and against Defendant HBSM, payable within 30 days. (CCP, § 2031.320, subd. (b); CRC Rule 3.1348(a).)

Plaintiff's Motion to Compel Compliance with Andrew Kim's Responses to Requests for Production Pursuant to CCP section 485.230 [RES ID # 9396] is DENIED as MOOT.

The request for sanctions is GRANTED.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$1, 125.00 (3 hours @ \$375.00/hour and \$300.00/hour) [5.08 hours requested] [Amount Requested \$1,700.00], which sum is to be awarded in favor of Plaintiff Ikuo Ogihara, and against Defendant Andrew Kim, payable within 30 days. (CCP, § 2031.320, subd. (b); CRC Rule 3.1348(a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.